

8	Morris Cerullo World Evangelism v. G10 Law 2026-01543510 Motion for Change in Venue (Transfer) CMC	The Motion to Transfer Venue by Defendants G10 Law, A Professional Law Corporation, Louis A. Galuppo, and Georgia Z. Schneider is GRANTED. This legal malpractice case arises from the attorney Defendants' handling of an underlying real property lawsuit, Orange County Case No. 21-01227550. Defendants assert venue in San Diego County is proper because all parties reside in San Diego County and the attorney-client relationship was formed and carried out in that County. Legal standard Code of Civil Procedure section 395, subdivision (a) states in part, "Except as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action. If the action is for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the county where the injury occurs or the injury causing death occurs or the county where the defendants, or some of them reside at the commencement of the action, is a proper court for the trial of the action. [. . .] Subject to subdivision (b), if a defendant has contracted to perform an obligation in a particular county, the superior court in the county where the obligation is to be performed, where the contract in fact was entered into, or where the defendant or any defendant resides at the commencement of the action is a proper court for the trial of an action founded on that obligation, and the county where the obligation is incurred is the county where it is to be performed, unless there is a special contract in writing to the contrary." "The plaintiff's theory of the action as set forth in the complaint determines the venue. Because the law favors the right of trial at the defendant's residence, the complaint will be strictly construed against a plaintiff seeking to lay the venue elsewhere." (<i>Gallin v. Superior Court</i> (1991) 230 Cal.App.3d 541, 544.) However, "the county of a defendant's residence is not a preferred place of trial over the county where the contract is entered into or is to be performed." (<i>Gilman v. Nordin</i> (1952) 112 Cal.App.2d 788, 793 [emphasis in original].) "Section 395 of the Code of Civil Procedure provides that the county in which the contract sued on is made and is

		to be performed is a proper county for trial of the action. Further, it will be noted that the county where the contract is made is deemed to be the county where it is to be performed, unless there is a special contract in writing to the contrary. No distinction is drawn between an action at law or in equity. Further, where the main relief sought is grounded upon a cause of action based on a contract obligation, the contract or nature of the case controls under the 'main relief' rule." (<i>Diepenbrock v. Auslen</i> (1960) 185 Cal.App.2d 747, 751.) Section 397 states in part: "The court may, on motion, change the place of trial in the following cases: (a) When the court designated in the complaint is not the proper court. (b) When there is reason to believe that an impartial trial cannot be had therein. (c) When the convenience of witnesses and the ends of justice would be promoted by the change." Application Although Defendants have performed legal services related to Orange County litigation, Plaintiffs have not opposed the motion and have therefore not demonstrated Defendants "contracted to perform an obligation" in Orange County. Moreover, the statute states generally, the county "where the obligation is incurred is the county where it is to be performed," and the parties' contract was entered or "incurred" in San Diego.
11	Munoz v. Pacific Woods, LLC 2022-01248823 Motion to Dismiss/Strike CMC	Defendant Peter Arzola dba Absolute Services' motion to dismiss the Third Amended Complaint is OFF CALENDAR. Dismissal was entered as to Defendant on 8-4-26. (ROA 1138.) Moving Defendant to give notice. MOTION NO. 2:Defendant Peter Arzola dba Absolute Services' moves to strike portions of the Third Amended Complaint is OFF CALENDAR. Dismissal was entered as to Defendant on 8-4-26. (ROA 1138.) Moving Defendant to give notice.